

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #10	CCRB Case #: 201707723	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/17/2016 7:18 AM	Location of Incident: § 87(2)(b)	Precinct: 81	18 Mo. SOL 5/17/2018	EO SOL 5/17/2018	
Date/Time CV Reported Tue, 09/19/2017 2:20 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 09/19/2017 2:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Yasin Elhaddad	3263	940123	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Brenace John	04914	956773	081 PCT
2. POM Sharif Portee	10221	940591	081 PCT
3. POM Anthony Fazio	10099	960524	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Yasin Elhaddad	Abuse: Sergeant Yasin Elhaddad forcibly removed § 87(2)(b) to the hospital	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed the following complaint as a walk-in with the CCRB on September 19, 2017.

On November 17, 2016, at approximately 7:18 a.m., PO Brenace John and PO Sharif Portee of the 81st Precinct responded to a call for an EDP at § 87(2)(b) in Brooklyn and spoke with § 87(2)(b). Sgt. Yasin Elhaddad arrived at the location and authorized the removal of § 87(2)(b) to the hospital (**Allegation A: Abuse of Authority** – § 87(2)(g)).

There is no video footage associated with this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Yasin Elhaddad forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) was interviewed at the CCRB on September 19, 2017 (Board Review 05). On the date of the incident, § 87(2)(b) was in her kitchen when she heard banging on her ceiling. § 87(2)(b) has an ongoing dispute with her upstairs neighbor § 87(2)(b) and her family. § 87(2)(b) complained to building security (no longer employed by the building) and they said they would talk to § 87(2)(b). § 87(2)(b) declined and went back upstairs to her apartment. The banging continued and § 87(2)(b) yelled that she was going to call the police. § 87(2)(b) then left her apartment, went upstairs, hid near the elevator and watched § 87(2)(b)'s door. Three uniformed, white male officers arrived on the 6th floor and knocked on § 87(2)(b)'s door. § 87(2)(b) pointed out § 87(2)(b) and said, “She’s the one. She’s crazy.” The officers turned to § 87(2)(b) and § 87(2)(b) told them to go downstairs to speak with building security. The officers went down to the lobby with § 87(2)(b) and one of the security guards confirmed that § 87(2)(b) had previously complained about § 87(2)(b). The officers told § 87(2)(b) she needed to go with them to a hospital without explanation and she refused. The officers handcuffed § 87(2)(b) put her in an ambulance and she was transported to § 87(2)(b) (Board Review 04).

§ 87(2)(b) provided a phone statement on November 1, 2017 (Board Review 06). § 87(2)(b) stated that she called the police because § 87(2)(b) banged on her door. She saw § 87(2)(b) standing outside with what she believed to be a weapon described as a stick. § 87(2)(b) called the police and waited for them to arrive. Once the officers arrived, they talked to § 87(2)(b) in the lobby and tried to calm her down because she was highly agitated. The officers did not put their hands on § 87(2)(b) because she was an elderly lady. § 87(2)(b) did not see how the incident concluded because she went back to her apartment. § 87(2)(b) stated that she calls the police on § 87(2)(b) frequently and usually § 87(2)(b) does not open the door.

Although § 87(2)(b) described the officers as three white male officers, the investigation identified the responding officers as PO Brenace John, who is a black female and PO Sharif Portee of the 81st Precinct, who is a black male.

PO John and PO Portee were interviewed at the CCRB on April 5, 2018 (Board Review 07, Board Review 08) § 87(2)(g). PO John and PO Portee stated that there was a radio run for a dispute at § 87(2)(b). They arrived at the location and encountered § 87(2)(b) in the lobby area. § 87(2)(b) was irate and yelled at the officers that she called for an ambulance and not for the police. § 87(2)(b) never explained why she called for an

ambulance. PO John did not see any visible injuries on § 87(2)(b) § 87(2)(b) cursed at the officers, paced back and forth and pounded on the glass doors of the lobby with her hands. Either PO John or PO Portee called to check the status of the ambulance and asked for it to be rushed to the location. EMS eventually arrived and § 87(2)(b) spoke with the EMT's and was still in an agitated state. The officers did not recall the conversation between § 87(2)(b) and the EMT's. The EMTs then approached PO John and PO Portee and stated that they were going to take § 87(2)(b) to the hospital but the EMT's refused to place § 87(2)(b) in the ambulance without handcuffs due to her agitated state. PO John and PO Portee did not recall if the EMTs stated why they were taking § 87(2)(b) to the hospital. PO John stated that she and PO Portee did not want to handcuff § 87(2)(b) without permission from their supervisor. The officers called for a supervisor to come to the scene and Sgt. Yasin Elhaddad arrived. The EMTs explained to Sgt. Elhaddad that they would not take § 87(2)(b) unless she was handcuffed. Sgt. Elhaddad gave PO John and PO Portee permission to handcuff § 87(2)(b) PO John handcuffed § 87(2)(b) and rode with her in the ambulance to § 87(2)(b).

Sgt. Elhaddad was interviewed at the CCRB on April 25, 2018 (Board Review 10) and he stated that there was a radio run for an emotionally disturbed person. He stated that it was either PO John or PO Portee on the radio stating that they needed a supervisor. Sgt. Elhaddad responded to the location with his operator, PO Anthony Fazio. Sgt. Elhaddad tried speaking to the officers but § 87(2)(b) was screaming so loudly that he was not able to hold a conversation with PO John and PO Portee. Sgt. Elhaddad stated that the EMTs arrived after he did and that PO John and PO Portee had already made the decision to have § 87(2)(b) sent to a hospital because she was not complying with them. Sgt. Elhaddad could not specify how § 87(2)(b) was not complying with the officers. Sgt. Elhaddad gave the okay for the officers to handcuff § 87(2)(b) and she was taken to the hospital.

PO Fazio was interviewed at the CCRB on April 25, 2018 (Board Review 09) and had no recollection of this incident.

The ACR for § 87(2)(b) noted that she was acting disorderly and aggressively towards bystanders and police. She was uncooperative with police and EMS and she was making threats towards bystanders while holding a metal rod. Her medical records note that she was brought in for irrational behavior. It also notes that § 87(2)(b) stated that she called the police on her neighbors for being noisy and waited upstairs at the neighbors' door.

The EVENT for this incident (Board Review 01) notes that a call was made by § 87(2)(b) and she stated that § 87(2)(b) was in the hallway with a weapon in her hand. She further stated that § 87(2)(b) banged on their apartment door with the object and made threats to kill them and burn them.

EMTs #§ 87(2)(b) and #§ 87(2)(b) were scheduled for an interview, however EMT #§ 87(2)(b) did not appear and EMT #§ 87(2)(b) stated that he was not working as an EMT at the time of the incident. EMT #§ 87(2)(b) who responded to § 87(2)(b) location, left the job and the shield number was re-assigned (Board Review 11).

Patrol Guide Procedure 221-13 (Board Review 02) states that an officer must take into protective custody, and have removed to the hospital in an ambulance, any "person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others."

It is undisputed that a 911 call was made and EMS arrived, § 87(2)(g) [REDACTED]. PO John, PO Portee and Sgt. Elhaddad could not recall the details of the original radio run except that it was for an emotionally disturbed person. Sgt. Elhaddad stated that once he arrived, the decision had already been made for § 87(2)(b) [REDACTED] to go to the hospital and the officers needed his authorization as required by NYPD to remove § 87(2)(b) [REDACTED] to the hospital. However, he could not recall whether he was informed that § 87(2)(b) [REDACTED] requested the ambulance.

§ 87(2)(g) [REDACTED]. Sgt. Elhaddad described § 87(2)(b) [REDACTED] as screaming and cursing. § 87(2)(b) [REDACTED] also stated to the CCRB and to 911 that § 87(2)(b) [REDACTED] threatened to burn the building and stood outside of her apartment with a stick. The ACR also noted that § 87(2)(b) [REDACTED] physically threatened bystanders in the lobby area. Additionally, Sgt. Elhaddad stated that § 87(2)(b) [REDACTED] is known to the precinct as a chronic visitor of the stationhouse and 911 caller.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 22, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED].

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED] has been party to 2 CCRB complaints and has been named as a victim in 2 allegations (Board Review 03).
 - § 87(2)(b) [REDACTED]
[REDACTED]
- Sergeant Yasin Elhaddad has been a member of service for 12 years and this is the first CCRB complaint to which he has been a subject.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date